

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shania Roach	Team: Squad #13	CCRB Case #: 201405287	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/29/2014 11:55 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 11/29/2015	Precinct: 120		
Date/Time CV Reported Fri, 05/30/2014 1:38 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/30/2014 1:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Greenberg	05648	940214	120 PCT
2. POM Dominick Raso	13883	943720	120 PCT
3. POM Matthew Gueli	11130	945202	120 PCT
4. POM Raymond Rodriguez	28037	946181	120 PCT
5. SGT Brendan Heapes	01635	932779	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Duggan	14987	943195	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brendan Heapes	Abuse: Sgt. Brendan Heapes supervised the stop of § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Matthew Gueli	Abuse: PO Matthew Gueli frisked § 87(2)(b)	B . Substantiated
C . POM Matthew Gueli	Abuse: PO Matthew Gueli searched § 87(2)(b)	C . Substantiated
D . POM Jason Greenberg	Abuse: PO Jason Greenberg frisked § 87(2)(b)	D . Substantiated
E . POM Jason Greenberg	Abuse: PO Jason Greenberg searched § 87(2)(b)	E . Unsubstantiated
F . POM Jason Greenberg	Abuse: PO Jason Greenberg refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 29, 2014, Sgt. Brendan Heapes, PO Jason Greenberg, PO Matthew Gueli, PO Raymond Rodriguez, PO Dominick Raso, and PO Christopher Duggan, of the 120th Precinct Strategy Enforcement Team (SET), stopped § 87(2)(b) and § 87(2)(b) in front of § 87(2)(b) in Staten Island (**Allegation A**). During the stop PO Gueli frisked and allegedly searched § 87(2)(b) (**Allegation B** and **Allegation C**) and PO Greenberg frisked and allegedly searched § 87(2)(b) (**Allegation D** and **Allegation E**). When the officers left the location, § 87(2)(b) alleged that he asked PO Greenberg for his name and shield number and PO Greenberg failed to provide it (**Allegation F**) (encl. B 1-2, B 4-13).

Mediation, Civil and Criminal Histories

On May 30, 2014, § 87(2)(b) and § 87(2)(b) accepted mediation; however, on February 2, 2015, the undersigned investigator received a call from § 87(2)(b)'s civil attorney and learned that § 87(2)(b) filed a Notice of Claim (encl. E 9.1- E 9.5). On that same date, the Notice of Claim was requested; however, as of April 27, 2015, the request has not been fulfilled. As a result of the claim, the case is ineligible for mediation. § 87(2)(b) [§ 86(1)(2)&(4)] § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) and § 87(2)(b) (encl. A 35-36).
- Sgt. Brendan Heapes has been a member of the NYPD for 11 years, and has had 2 previous CCRB allegations involving 2 cases with no substantiated allegations. § 87(2)(g)
- PO Jason Greenberg has been a member of the NYPD for 9 years, and has had 16 previous CCRB allegations involving 10 cases with no substantiated allegations. § 87(2)(g)
- PO Matthew Gueli has been a member of the NYPD for 7 years, and has had 5 previous CCRB allegations involving 4 cases with no substantiated allegations. § 87(2)(g)
- PO Raymond Rodriguez has been a member of the NYPD for 7 years, and has had 4 previous CCRB allegations involving 3 cases with no substantiated allegations. § 87(2)(g)
- PO Dominick Raso has been a member of the NYPD for 8 years, and has had 10 previous CCRB allegations involving 5 cases with one substantiated allegation. § 87(2)(g)
 - In CCRB case # 201104983 a vehicle search allegation was substantiated against PO Raso. The board recommended instructions and the NYPD penalty was instructions.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) and § 87(2)(b) both stated that they were stopped by six plain clothes officers who arrived at the location in approximately three unmarked cars. During the stop, § 87(2)(b) asked one of the officers for his name and the officer said his name was Sgt. Heapes. The 120th Precinct roll call (encl. E 7-8) shows that Sgt. Heapes was the SET team supervisor. PO Greenberg, PO Gueli, PO Rodriguez, PO Raso, and PO Duggan were listed on the roll call as assigned to Sgt. Heapes' SET team that day. All six of these officers wore plain clothes and were

assigned to dark unmarked vehicles. PO Greenberg and PO Gueli also had memo book entries regarding the stop, listing § 87(2)(b) and § 87(2)(b) by name and the location of the stop (encl. D16 and D25). § 87(2)(g)

§ 87(2)(b) alleged that he was frisked and searched by Sgt. Heapes, who he described as a white male who stood 6' 1", weighed between 235 and 240 pounds, had brown hair, and appeared to be in his early 40s. Although § 87(2)(b) alleged that Sgt. Heapes was the officer that frisked and searched him, these allegations were pled against PO Gueli because PO Gueli acknowledged that he was the one who interacted with § 87(2)(b). PO Gueli also had a memo book entry for § 87(2)(b)'s stop, claimed that he prepared a Stop, Question, and Frisk report for his encounter with § 87(2)(b) and stated that he believed his frisked § 87(2)(b) for his safety. PO Gueli also matches § 87(2)(b)'s description of the officer in that he was a white male with reddish brown hair, a mustache and a goatee, stood 5' 9", appeared to be in his late thirties, and wore plain clothes. § 87(2)(g)

§ 87(2)(b) alleged that he was frisked and searched by a plain clothed white male who stood 5' 9", weighed between 175 and 200 pounds and appeared to be in his late 30s. He also alleged that this officer refused to provide his name and shield number when asked. Because PO Greenberg matched the description § 87(2)(b) provided, except for the weight, these allegations were pled against him. Although PO Greenberg did not have any recollection of the incident, he prepared a Stop, Question, and Frisk Report and had a memo book entry regarding the stop of § 87(2)(b). Additionally, PO Greenberg stated that he only prepares Stop, Question, and Frisk reports for stops he personally performed himself. § 87(2)(g)

Allegation A- Sgt. Brendan Heapes supervised the stop of § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that as they had a conversation, spoke to people they knew from the neighborhood, and drank their coffee on the sidewalk in front of § 87(2)(b) where § 87(2)(b) lived, six plain clothes officers, identified via investigation as Sgt. Brendan Heapes, PO Jason Greenberg, PO Matthew Gueli, PO Dominick Raso, PO Raymond Rodriguez, and PO Christopher Duggan in unmarked cars approached them. According to § 87(2)(b) during the stop he asked what was going on and Sgt. Heapes replied that the officers were looking for some black men that hang out in the parking lot nearby and that § 87(2)(b) and § 87(2)(b) matched the descriptions of the men. During the incident, § 87(2)(b) obtained Sgt. Heapes' name after asking for it (encl. C 2-3). § 87(2)(b) stated that one of the officers told them they were stopped because they matched the description they received of two men who were selling drugs (encl. C 8-9).

During their interviews, Sgt. Heapes and PO Greenberg both had no recollection of the incident. The officers could not recall why they stopped the men nor could they recall the circumstances that led to the stop. Additionally, PO Greenberg prepared both a memo book entry (encl. D 13-16) and Stop, Question, and Frisk report, which stated that § 87(2)(b) was stopped for suspicion of criminal possession of a controlled substance (encl. D17). Even after being shown a copy of the Stop, Question, and Frisk report he prepared, PO Greenberg could not provide any information regarding the reason for the stop. When shown the Stop, Question, and Frisk report

that PO Greenberg prepared, Sgt. Heapes could not provide any information regarding the reason for the stop.

PO Gueli stated that he and the other members of the SET team, Sgt. Heapes, PO Greenberg, PO Duggan, PO Raso, and PO Rodriguez, conducted an operation at 10:22 a.m., during which PO Duggan made two arrests. According to PO Gueli, after the arrests the team went “right back out” on patrol at 11:00 a.m. PO Gueli could not recall what brought his attention to § 87(2)(b) or § 87(2)(b). PO Gueli could not recall if he received a call over the radio regarding what the men were doing. When asked why the men were stopped, PO Gueli referred to his memo book and said that they were stopped for criminal possession of a controlled substance. PO Gueli recalled that § 87(2)(b) was with “a couple of other guys” when he was stopped and approximated that there were no more than three other males with § 87(2)(b). When shown a photograph of § 87(2)(b), PO Gueli recognized him as one of the men that were with § 87(2)(b) (encl. D 27-28). Additionally, PO Gueli prepared a memo book entry (encl. D 23-25) for § 87(2)(b)’s stop.

PO Rodriguez had no recollection of the incident and added that he did not recall working with Sgt. Heapes or the other officers on the date of the incident. Additionally, PO Rodriguez stated that after his partner, PO Duggan made two arrests at 10:45 a.m., he “most likely went back to the precinct,” to process the arrest with PO Duggan (encl. D12). At the time of the investigation, PO Duggan had resigned from the NYPD; therefore, he was not interviewed. PO Raso had no recollection of the incident. When he was shown a copy of the roll call for the date of the incident, PO Raso confirmed that he was part of the SET which was comprised of Sgt. Heapes, PO Greenberg, PO Gueli, PO Rodriguez, and PO Duggan, but could not recall which officers were assigned to which vehicles; however, when shown a copy of the Stop, Question, and Frisk report prepared by PO Greenberg, PO Raso stated that although he was part of the SET team, he was not with PO Greenberg (encl. D8). Of the five officers interviewed and assigned to the SET team, PO Gueli and PO Raso were the only two officers who admitted to working as a team with Sgt. Heapes as their supervisor on that day.

People v. De Bour, 40 N.Y.2d 210, 215 (1976) (encl. A 1-12) states that an officer may stop someone when the officer reasonably suspects that the person is committing, has committed, or is about to commit a crime. Additionally, officers have an obligation to articulate the reasonable suspicion they have for stopping an individual.

§ 87(2)(g)
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§ 87(2)(g) it is recommended that Allegation A be closed as **substantiated**.

Allegation B- PO Matthew Gueli frisked § 87(2)(b)

Allegation C- PO Matthew Gueli searched § 87(2)(b)

§ 87(2)(b) alleged that PO Gueli frisked his back pants pockets and asked § 87(2)(b) what was inside his right back pants pocket as he squeezed it. When § 87(2)(b) removed his wallet from his pants pocket, he stated that PO Gueli took the wallet from his hand, opened it, and removed § 87(2)(b)’s identification (encl. C 2-3).

PO Gueli did not recall frisking or searching § 87(2)(b) but he told the CCRB that he believed that he frisked § 87(2)(b) for his safety. When asked if § 87(2)(b) appeared to be armed, PO Gueli replied, “No, he just had his hand in his pocket I believe. I could see a bulge inside of it and I just checked from the outside and that was it. But searched him for anything else, I don’t believe I did. I don’t know.” PO Gueli could not recall the size or shape of the bulge in § 87(2)(b)’s pocket. PO Gueli only recalled frisking that pocket. PO Gueli could not recall if he ever learned what was inside of § 87(2)(b)’s pocket. PO Gueli did not recall removing items from § 87(2)(b)’s pocket or if he instructed § 87(2)(b) to remove items from his pocket (encl. D 27-28). Although PO Gueli had the stop documented in his memo book (encl. D25) and maintained that he prepared a Stop, Question and Frisk report, a request for the report from the NYPD revealed that there was no Stop, Question and Frisk report prepared by PO Gueli for § 87(2)(b) (encl. F4).

An officer may frisk an individual if he has a particularized reasonable suspicion that the suspect may be armed and dangerous. People v. Forrest, 77 A.D.3d 511 (App. Div. 1st Dep’t. 2010) (encl. A 13). In instances where a frisk reveals a bulge, that bulge must look and feel like a weapon before the officer can conduct a further and more intrusive search. People v. Robinson, 125 A.D.2d 256, 261 (App. Div. 1st Dep’t. 1986) (encl. A 14-16).

§ 87(2)(g)
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[REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]
[REDACTED] In light of the above, it is recommended that both Allegation B and Allegation C be closed as **substantiated**.

Allegation D- PO Jason Greenberg frisked § 87(2)(b)

It is undisputed that PO Greenberg frisked § 87(2)(b) after he was suspected of being in possession of a controlled substance. Although PO Greenberg could not recall frisking § 87(2)(b) during the stop, PO Greenberg prepared a Stop, Question, and Frisk report for § 87(2)(b) (encl. D 17). On that Stop, Question, and Frisk report, PO Greenberg checked the box that § 87(2)(b) was frisked and provided the reason for the frisk as furtive movements and acting indicative of engaging in a drug transaction. PO Greenberg specified on the Stop, Question, and Frisk report that the crime suspected was criminal possession of a controlled substance. However, in his CCRB interview PO Greenberg could not recall what, if any, furtive movements § 87(2)(b) made. Additionally, PO Greenberg indicated that he did not recall anything about § 87(2)(b) that made him think § 87(2)(b) was armed (encl. D 21-22).

An officer may frisk an individual if he has a particularized reasonable suspicion that the suspect may be armed and dangerous. People v. Forrest, 77 A.D.3d 511 (App. Div. 1st Dep’t. 2010) (encl. A13). Suspicion that an individual has engaged in a drug transaction is an insufficient basis for frisking such person. People v. Gonzalez, 295 A.D.2d 183 (App. Div. 1st Dep’t. 2002) (encl. A 17-23).

§ 87(2)(g)

therefore, it is recommended that Allegation D be **substantiated**.

Allegation E- PO Jason Greenberg searched § 87(2)(b)

§ 87(2)(b) alleged that PO Greenberg placed his hands inside of each of his cargo pants pockets; however, he stated that PO Greenberg did not remove anything. Upon seeing a metal chain that was hooked onto § 87(2)(b)'s belt loop, PO Greenberg asked, "What's this?" as he pulled the metal chain up which removed § 87(2)(b)'s keys from his pocket (encl. C 8-9). § 87(2)(b) did not see what happened during § 87(2)(b)'s interaction with PO Greenberg (encl. C 2-3).

PO Greenberg did not have an independent recollection of the incident and did not recall entering § 87(2)(b)'s pockets or searching § 87(2)(b) (encl. D 21-22). PO Greenberg prepared a Stop, Question and Frisk report (encl. D17) after the stop which states that § 87(2)(b) was not searched. Sgt. Heapes, PO Gueli, PO Rodriguez, and PO Raso had no independent recollection of the incident or any such search.

§ 87(2)(g)

therefore, it is recommended that Allegation E be closed as **unsubstantiated**.

Allegation F- PO Jason Greenberg refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that after he was frisked and searched, he looked at PO Greenberg and said, "Hey, I want your name and badge number," to which PO Greenberg replied, "You don't need it, there aren't any charges," as he walked away (encl. C 8-9). § 87(2)(b) stated that when § 87(2)(b) asked one of the officers for his name and shield number the officer told him no and continued walking. Sgt. Heapes then said, "Oh, you can have mine. I'm Sgt. Heapes." § 87(2)(b) then asked, "Well, what's your badge number, and Sgt. Heapes replied, "1635." (encl. C 2-3).

PO Greenberg did not recall § 87(2)(b) asking for his name and shield number and denied not providing it (encl. D 21-22). None of the other officers interviewed heard § 87(2)(b) ask any officer for his name and shield number and did not hear any officer make the alleged statement (encl. D4, D8, D12, D 27-28).

NYPD Patrol Guide Procedure 203-09 states that an officer must, "courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so," (encl. A24).

§ 87(2)(g)

therefore, it is recommended that Allegation F be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
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Reviewer: _____
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